Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington 25, D. C., written objections thereto. Objections shall show wherein the person filing will be adversely affected by this order, specify with particularity the provisions of the order deemed objectionable and reasonable grounds for the objections, and request a public hearing upon the objections. Objections may be accompanied by a memorandum or brief in support thereof. All documents shall be filed in quintuplicate.

Effective date. This order shall be effective upon publication in the FEDERAL REGISTER.

(Sec. 701, 52 Stat. 1055, as amended; 21 U. S. C. 371. Interprets or applies sec. 408, 68 Stat. 511; 21 U. S. C. 346a)

Dated: February 28, 1958.

[SEAL] GEO. P. LARRICK,
Commissioner of Food and Drugs.

[F. R. Doc. 58-1664; Filed, Mar. 5, 1958; 8:46 a. m.]

TITLE 26—INTERNAL REVENUE, 1954

Chapter I—Internal Revenue Service, Department of the Treasury

[T. D. 57, Narcotic Regs. 5]

PART 151—REGULATIONS UNDER THE HARRISON NARCOTIC LAW AS AMENDED

FINDING AND DESIGNATION OF NARCOTIC DRUGS AND COMPOUNDS OF NARCOTIC DRUGS SUBJECT TO ORAL PRESCRIPTION PROCEDURE

Section 151.172a of this chapter (20 F. R. 6526), relating to narcotic drugs and compounds for which oral prescription is authorized, is hereby amended by adding a new paragraph (j), as follows:

(j) Any compound consisting of dihydrocodeine or any salt thereof with one or more active non-narcotic ingredients in recognized therapeutic amounts, where the content of dihydrocodeine or any salt thereof does not exceed eight grains per fluid ounce or one grain per dosage unit of the compound.

Because the finding and designation made by this Treasury decision relieves restrictions, it is found unnecessary to issue the decision with notice and public procedure thereon under section 4 (a) of the Administrative Procedure Act, approved June 11, 1946, or subject to the effective date limitation of section 4 (c) of the act.

This Treasury decision shall be effective upon its filing for publication in the FEDERAL REGISTER.

(68 Stat. 1001; 26 U. S. C. 4705)

[SEAL] G. W. CUNNINGHAM,
Acting Commissioner of Narcotics.

FEBRUARY 28, 1958.

[F. R. Doc. 58-1701; Filed, Mar. 5, 1958; 8:53 a. m.]

TITLE 36—PARKS, FORESTS, AND MEMORIALS

Chapter I—National Park Service, Department of the Interior

PART 1—GENERAL RULES AND REGULATIONS

PRIVATE OPERATIONS

Subparagraph (2) of paragraph (a) of § 1.31 *Private operations* is amended to read as follows:

(2) No person, firm, or corporation shall engage in or solicit any business or erect or maintain buildings or other structures on federally owned lands within any park or monument except when authority therefor has been granted pursuant to a revocable permit issued by an authorized officer or employee of the National Park Service.

Subparagraph (2) of paragraph (b) of § 1.31 *Private operations* published in the FEDERAL REGISTER on January 16, 1958 (23 F. R. 297), is revoked.

(Sec. 3, 39 Stat. 535, as amended; 16 U. S. C. 3)

FRED A. SEATON,
Secretary of the Interior.

FEBRUARY 27, 1958.

[F. R. Doc. 58-1673; Filed, Mar. 5, 1958; 8:48 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1592]

[BLM 045168]

MINNESOTA

WITHDRAWING LANDS FOR USE OF CORPS OF ENGINEERS, DEPARTMENT OF THE ARMY, FOR RESERVOIR PURPOSES

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Minnesota are hereby withdrawn from all forms of appropriation under the public-land laws, including the mineral-leasing laws and the act of July 31, 1947 (61 Stat. 681; 30 U. S. C. 601-604) as amended, and reserved for use of the Corps of Engineers, Department of the Army, for reservoir purposes:

FOURTH PRINCIPAL MERIDIAN

T. 49 N., R. 24 W.,
Sec. 25, Lot 11.

The tract described contains 0.40 acre.

It is the intent of this order that the withdrawn minerals in the lands shall remain under the jurisdiction of the Department of the Interior, and no disposition shall be made of such minerals except under the applicable United States mining and mineral-leasing laws, and then only after such modification of the provisions of this order as may be necessary to permit such disposition.

ROGER ERNST,
Assistant Secretary of the Interior.

FEBRUARY 28, 1958.

[F. R. Doc. 58-1666; Filed, Mar. 5, 1958; 8:47 a. m.]

[Public Land Order 1593]

[650448]

WASHINGTON

REVOKING EXECUTIVE ORDER OF OCTOBER 17, 1916, WHICH CREATED PUBLIC WATER RESERVE NO. 40

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. The Executive order of October 17, 1916, which created Public Water Reserve No. 40, is hereby revoked:

WILLAMETTE MERIDIAN

T. 39 N., R. 26 E.,
Sec. 32, NE¼NW¼.

The area described contains 40 acres.

2. The land is open sagebrush grazing land located in Okanogan County, Washington.

3. No application for the land may be allowed under the homestead, desert land, small tract, or any other nonmineral public land law unless the land has already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The land will not be subject to occupancy or disposition until it has been classified.

4. Subject to any valid existing rights and the requirements of applicable law, the land is hereby opened to filing of applications, locations, and selections in accordance with the following:

a. Applications and selections under the nonmineral public land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference

rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, presented prior to 10:00 a. m. on April 5, 1958, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m., on July 5, 1958, will be governed by the time of filing.

(3) All valid applications and selections under the non-mineral public land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m. on July 5, 1958, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The land has been open to applications and offers under the mineral-leasing laws, and to location for metalliferous minerals. It will be open to location for non-metalliferous minerals under the United States mining laws beginning at 10:00 a. m. on July 5, 1958.

5. Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the land shall be addressed to the Manager, Land Office, Bureau of Land Management, Spokane, Washington.

ROGER ERNST,
Assistant Secretary of the Interior.

FEBRUARY 28, 1958.

[F. R. Doc. 58-1667; Filed, Mar. 5, 1958; 8:47 a. m.]

[Public Land Order 1594]

[994960]

WASHINGTON

REVOKING EXECUTIVE ORDER NO. 3819 OF APRIL 9, 1923, WHICH WITHDREW LANDS FOR CLASSIFICATION

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 3819 of April 9, 1923, withdrawing the following described lands in the State of Washington for classification is hereby revoked:

WILLAMETTE MERIDIAN

T. 23 N., R. 9 E.,
Sec. 26, Lots 1, 2, 3, 4, E½NW¼, NE¼SW¼, and NW¼SE¼.
T. 20 N., R. 13 E.,
Sec. 14, S½SW¼ and SW¼SE¼;
Sec. 28, S½SW¼;
Sec. 34, NE¼ and S½.
T. 20 N., R. 14 E.,
Sec. 4, Lots 1, 3 and 4, SW¼NW¼, S½SW¼;
Sec. 6;
Sec. 8, N½ and SW¼;
Sec. 30, S½;
Sec. 32, SW¼NE¼, NW¼, and S½.
T. 21 N., R. 15 E.,
Sec. 20, W½NE¼.
T. 21 N., R. 16 E.,
Sec. 4, Lots 1 and 2.
T. 20 N., R. 17 E.,
Sec. 4, NE¼;
Sec. 8, E½E½;
Sec. 10, N½NE¼, SW¼NE¼, and SE¼SE¼;
Sec. 12, N½;
Sec. 15, W½W½NE¼ and E½NE¼NW¼.
T. 23 N., R. 18 E.,
Sec. 4, SE¼SW¼;
Sec. 6, NW¼;
Sec. 20, S½SW¼;
Sec. 24, E½NE¼ and S½.
T. 24 N., R. 18 E.,
Sec. 30, Lots 3 and 4, SE¼SW¼ and NE¼SE¼.
T. 20 N., R. 19 E.,
Sec. 6, Lots 1, 2, 6 and 7, SE¼NE¼, SE¼SW¼;
Sec. 8, NW¼;
Sec. 20, W½NE¼;
Sec. 32, N½NW¼.
T. 22 N., R. 19 E.,
Sec. 4, SW¼;
Sec. 6, Lot 3;
Sec. 8;
Sec. 10, N½, NW¼SW¼, N½SE¼, SE¼SE¼;
Sec. 14, N½NE¼; N½NW¼; SE¼NW¼, W½SE¼;
Sec. 18, Lots 1 and 2, E½NE¼, SW¼;
Sec. 24, NE¼;
Sec. 28, SW¼NE¼, SW¼, NW¼SE¼, S½SE¼;
Sec. 30, SW¼;
Sec. 32;
Sec. 34, W½E½ and W½.
T. 23, N., R. 19 E.,
Sec. 30, Lots 1 and 2, E½NE¼, SW¼, N½SE¼, and SW¼SE¼;
Sec. 32, NE¼, NE¼SW¼, N½SE¼;
Sec. 34, NW¼NE¼, N½NW¼, SW¼NW¼, and S½.
T. 27 N., R. 19 E.,
Sec. 22, W½SW¼;
Sec. 24, NW¼;
Sec. 26, E½NE¼, N½NW¼, NE¼SW¼, and SE¼.
T. 20 N., R. 20 E.,
Sec. 2, Lots 1 and 4, SE¼NE¼, SW¼NW¼, S½;
Sec. 4, NW¼SW¼, S½SW¼, SE¼SE¼;
Sec. 6;
Sec. 12, N½NE¼, W½NW¼, and S½.
T. 21 N., R. 20 E.,
Sec. 26, SE¼SW¼, SE¼;
Sec. 30, NW¼ and S½.
T. 25 N., R. 20 E.,
Sec. 6, E½;
Sec. 8, SE¼NE¼, N½NW¼, and S½.
T. 26 N., R. 20 E.,
Sec. 4, W½ of Lot 3, SE¼SE¼NW¼, W½NW¼, S½SW¼, NW¼SE¼;
Sec. 6, Lots 6 and 7, SE¼SW¼ and SW¼SE¼;
Sec. 8, E½SW¼, W½SE¼ and W½SW¼;
Sec. 10, W½NW¼ and N½SE¼;
Sec. 12, S½;
Sec. 22, E½, W½W½;
Sec. 24, E½ and SW¼;
Sec. 26, W½NE¼, NW¼, N½SW¼, SW¼SW¼, SE¼SE¼;
Sec. 32, NE¼NE¼, NE¼SE¼ and S½SE¼.
T. 27 N., R. 20 E.,
Sec. 21, NW¼;
Sec. 26, SW¼SE¼;
Sec. 30;
Sec. 32, N½NE¼, SW¼NE¼, W½, and NW¼SE¼.

The areas described aggregate approximately 18,000 acres.

2. Much of the land has been patented or included in national forests. The lands restored include but are not necessarily limited to the following, aggregating about 1,440 acres.

WILLAMETTE MERIDIAN

T. 23 N., R. 9 E.,
Sec. 26, Lots 1, 2, 3 and 4, E½NW¼, NE¼SW¼, NW¼SE¼.
T. 27 N., R. 19 E.,
Sec. 22, W½SW¼;
Sec. 24, NW¼;
Sec. 26, Lots 1 to 14, inclusive, SE¼SE¼.
T. 25 N., R. 20 E.,
Sec. 6, E½;
Sec. 8, SE¼NE¼, N½NW¼, N½NE¼NW¼SW¼, NW¼NW¼SW¼, NW¼SW¼NW¼SW¼, S½SE¼NW¼SW¼, NE¼NE¼SW¼, S½NE¼SW¼, S½NW¼SW¼SW¼, SW¼SW¼SW¼, E½SW¼SW¼, SE¼SW¼, SE¼.

(A complete and accurate statement of the status of any parcel of land affected by this order may be obtained from the Land Office Manager referred to in Paragraph 8 of this order.)

The areas described aggregate approximately 1,440 acres.

3. The lands opened by this order are forested lands on the lower slopes of the Cascade Mountain Range, and are primarily valuable for sustained-yield timber production.

4. No application for the restored lands may be allowed under the homestead, desert-land, small tract, or any other non-mineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

5. Subject to any valid existing rights and the requirements of applicable law, the lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the Act of September 27,